

Tentative Rulings for September 10, 2026 Department PS1

**To request oral argument, you must notify Judicial Secretary
Carol Delfosse-Kidd at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department PS1 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

COUNSEL AND SELF-REPRESENTED PARTIES ARE ENCOURAGED TO APPEAR AT ANY LAW AND MOTION DEPARTMENT TELEPHONICALLY WHEN REQUESTING ORAL ARGUMENTS.

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252, 1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **160 520 9376**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVPS2303732	WINSTEAD VS 7-ELEVEN, INC., A TEXAS CORPORATION	MOTION FOR SUMMARY JUDGMENT ON COMPLAINT OF ALYSSA WINSTEAD, AN INDIVIDUAL

Tentative Ruling: No tentative ruling. A hearing shall be conducted regarding continued date for the Motion for Summary Judgment.

The Court currently lacks the documents filed in opposition to this motion. On 6/24/26, Plaintiff filed a late opposition. However, most of the documents filed in opposition were rejected. The only document that was filed was the memorandum of points and authorities. As such the Court has no evidence or Plaintiff's separate statement to review. These documents are addressed in the reply by Defendant.

In Plaintiff's memorandum of points and authorities in opposition to this motion, she asks for a continuance under CCP § 437c(h). Under this provision, "[i]f it appears from the affidavits submitted in opposition to a motion for summary judgment or summary adjudication, or both, that facts essential to justify opposition may exist but cannot, for reasons stated, be presented, the court shall deny the motion, order a continuance to permit affidavits to be obtained or discovery to be had, or make any other order as may be just." To establish a continuance under CCP § 437c(h), Plaintiff must show that facts essential to support their opposition exist. (*Insalaco v. Hope Lutheran Church of West Contra Costa County* (2020) 49 Cal.App.5th 506, 518.) When an attorney "states with particularity the necessary discovery, 'the policy favoring disposition on the merits outweighs the competing policy favoring judicial efficiency'" and a continuance is required. (*Id.* at 520.) A continuance is virtually mandated when the requisite showing is made. (*Id.* at 517.) Continuances are to be liberally granted. (*Hamilton v. Orange County Sheriff's Depart.* (2017) 8 Cal.App.5th 759, 765.) In determining whether to continue a motion for summary judgment to allow for additional discovery, the court should consider various facts that include, how long the case has been pending, how much time the party had to oppose the motion, whether a continuance can be made earlier, the proximity to trial, prior continuances for this same reason, and whether the evidence sought is essential to the motion. (*Id.*) However, delay alone is not sufficient to deny a motion where there is a showing of specific discovery that is necessary to oppose the motion. (*Id.* at 766; *Insalaco, supra*, 49 Cal.App.5th at 518.)

Plaintiff's counsel's declaration is not currently before the Court because it was rejected. However, in her opposition Plaintiff does specifically identify the discovery she seeks – Umar Khan and Idali Martine Lozano's depositions and Yarana's records (policies, training materials, personnel records, incident reports, . . .).

Motion for Summary Judgment shall be continued to permit Plaintiff to file all prior documents associated with their Opposition submitted on 6.24.26 to be refiled with the court. Only those documents in Plaintiff's opposition served on Defendant Yarana shall be filed.

Plaintiff's counsel is directed to be prepared to address the court regarding the discovery identified in the Declaration of attorney Andrew M. Morrow and why that is necessary to continue the hearing pursuant to CCP 437c(h).

The Motion for Summary Judgment shall either be continued for the court to receive and review the associated Opposition documents or be continued further out for additional discovery and briefing.

CASE #	CASE NAME	HEARING NAME
CVPS2404465	HARB VS COHEN	MOTION TO BE RELIEVED AS COUNSEL FOR SI HARB

Tentative Ruling: No tentative ruling. Hearing is vacated.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2404465	HARB VS COHEN	MOTION TO BE RELIEVED AS COUNSEL FOR ROBERT REINER

Tentative Ruling: No tentative ruling. Hearing is vacated.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2404465	HARB VS COHEN	MOTION TO BE RELIEVED AS COUNSEL FOR GRANT ENTERTAINMENT, LLC, AN OHIO LIMITED LIABILITY COMPANY

Tentative Ruling: No tentative ruling. Hearing is vacated.

4.

CASE #	CASE NAME	HEARING NAME
CVPS2406454	GUBIN VS MAJER	MOTION TO COMPEL PLAINTIFF AMY PENN'S FURTHER RESPONSE TO FORM INTERROGATORIES BY DENNIS N. WALSH TRUSTEE OF DENNIS N. WALSH REVOCABLE

Tentative Ruling: A party may file a motion compelling further answers to interrogatories and requests for production if it finds that the response is inadequate, incomplete, or evasive, or an objection in the response is without merit or too general. (Code Civ. Proc., §§ 2030.300, 2031.310.) Unless notice of the motion is given within 45 days of the service of the response, or any supplemental response, or on or before any specific later date to which the propounding party and the responding party have agreed in writing, the propounding party waives any right to compel a further response. (*Id.* at §§ 2030.300(c), 2031.310(c).) On the merits, there are two distinct issues: (1) the impact of the default and (2) whether a cross-defendant can serve plaintiffs discovery.

On the former, a defendant in default has no rights in litigation until it moves to set aside the default or default judgment is entered. (*Devlin v. Kearny Mesa AMC/Jeep/Renault, Inc.* (1984) 155 Cal.App.3d 381, 385-386.) However, Walsh, individually, is only defaulted on the complaint—not the cross-complaint. Plaintiffs assert that Walsh individually and as trustee are the same, by citing to *Aulisio v. Bancroft* (2014)

230 Cal.App.4th 1516, 1542-1525. But, *Aulisio* involved whether a trustee could be self-represented in a lawsuit, or whether he needed counsel. *Aulisio* is not on point. The fact remains that Walsh, as a trustee, is not defaulted on the cross-complaint, and therefore, is an active party in this litigation.

The more salient issue is whether a cross-defendant can serve plaintiffs discovery. Plaintiffs rely on *Shearer v. United California Theatres* (1955) 133 Cal.App.2d 720, 723, which held that “cross-actions are distinct and independent causes of action.” However, that was in the context of whether a plaintiff could appeal the granting of a summary judgment entered in favor of cross-defendants. (*Id.* at 721.)

It is true that cross-complaints are “generally considered to be a separate action from that initiated by the complaint.” (*Ohio Casualty Ins. Group v. Superior Court* (1994) 30 Cal.App.4th 444.) However, the discovery statutes provide “any party may obtain discovery...of any other party to the action.” (Code Civ. Proc., § 2030.010(a) [interrogatories]; 2031.010 [requests for production].) As one treatise notes: “Whether ‘any other party to the action’ allows parties to a *cross-complaint* to serve others who are parties to the main action only is unclear.” (Weil & Brown, *California Practice Guide: Civil Procedure Before Trial* §8:920 (Rutter Group 2026).) Weil and Brown observe: “For *pleading* purposes, a cross-complaint is regarded as a separate proceeding, *not* the same ‘action’ as the complaint.” (*Id.* at §8:921.) “However, for *discovery* purposes, parties to the complaint and cross-complaint should be treated as parties to the same ‘action,’ so as to permit service of interrogatories between P [party] and TP [third party]. Otherwise, to obtain discovery from each other, depositions would be required.” (*Id.* at §8:922.) For example, if the cross-complaint were actually a separate action, then Cross-Defendant could still obtain discovery via subpoenas.

As note by case law, the scope of discovery is broad. (*Williams v. Superior Court* (2017) 3 Cal.5th 531, 541.) The discovery statutes must be construed liberally in favor of discovery. (*Ibid.*) Under Code of Civil Procedure section 2017.010:

Unless otherwise limited by order of the court in accordance with this title, **any party** may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. **Discovery may relate to the claim or defense of the party seeking discovery or of any other party to the action.** Discovery may be obtained of the identity and location of persons having knowledge of any discoverable matter, as well as of the existence, description, nature, custody, condition, and location of any document, electronically stored information, tangible thing, or land or other property.

Thus, the question is relevancy.

Equitable indemnity ‘applies in cases in which one party pays a debt for which another is primarily liable and which in equity and good conscience should have been paid by the latter party.’” (*United Services Auto. Ass’n v. Alaska Ins. Co.* (2001) 94 Cal.App.4th 638, 644-645.) “Equitable indemnity principles govern the allocation of loss

or damages among multiple tortfeasors whose liability for the underlying injury is joint and several. Such principles are designed, generally, to do equity among defendants who are legally responsible for an indivisible injury by providing a basis on which liability for damage will be borne by each joint tortfeasor 'in direct proportion to [its] respective fault.'" (*Expressions at Rancho Niguel Assn. v. Ahmanson Development* (2001) 86 Cal.App.4th 1135, 1139-1140, citing *American Motorcycle Assn. v. Sup. Ct.* (1978) 20 Cal.3d 578, 597-598.) Thus, the elements are: "(1) a showing of fault on the part of the indemnitor and (2) resulting damages to the indemnitee for which the indemnitor is equitably responsible." (*C.W. Howe Partners, Inc. v. Mooradian* (2019) 43 Cal.App.5th 688, 700.) Thus, Cross-Defendant's liability is at issue for his defense to the indemnity claims. Therefore, the discovery is relevant.

Cross-Defendant/Cross-Complainant Dennis N. Walsh Trustee of Dennis N. Walsh Revocable Trust's Motion to Compel Further Response to Form Interrogatories GRANTED.

Plaintiff Amy Penn to provide code compliant, verified responses, without objection, within 20 days.

Cross-Defendant/Cross-Complainant's Request for Sanctions DENIED.

Plaintiff's Request for Sanctions DENIED.

Trial Setting Conference continued to 10.27.26.

Counsel ordered to file a Trial Setting Conference declaration 10 days in advance of hearing regarding mediation/ADR/ trial length in hours/ discovery/witnesses/interpreters/ status of settlement/special issues regarding evidence or exhibits/mutually agreeable trial dates within 6 months of the TSC as required by PS1 Law and Motion Rules. Failure to file can/will result in sanctions without further notice and the Court picking a firm trial date that will not be moved absent good cause.

5.

CASE #	CASE NAME	HEARING NAME
CVPS2406454	GUBIN VS MAJER	MOTION TO COMPEL PLAINTIFF AMY PENN'S FURTHER RESPONSE TO DEMAND FOR PRODUCTION OF DOCUMENTS BY DENNIS N. WALSH TRUSTEE OF DENNIS N. WALSH REVOCABLE

Tentative Ruling:

Cross-Defendant/Cross-Complainant Dennis N. Walsh Trustee of Dennis N. Walsh Revocable Trust's Motion to Compel Further Response to Demand for Production GRANTED.

Plaintiff Amy Penn to provide code compliant, verified responses and responsive documents, without objection, within 20 days.

Cross-Defendant/Cross-Complainant's Request for Sanctions DENIED.

Plaintiff's Request for Sanctions DENIED.

6.

CASE #	CASE NAME	HEARING NAME
CVPS2406454	GUBIN VS MAJER	MOTION TO COMPEL PLAINTIFF AMY PENN'S FURTHER RESPONSE TO SPECIAL INTERROGATORIES BY DENNIS N. WALSH TRUSTEE OF DENNIS N. WALSH REVOCABLE

Tentative Ruling:

Cross-Defendant/Cross-Complainant Dennis N. Walsh Trustee of Dennis N. Walsh Revocable Trust's Motion to Compel Further Response to Special Interrogatories GRANTED.

Plaintiff Amy Penn to provide code compliant, verified responses, without objection, within 20 days.

Cross-Defendant/Cross-Complainant's Request for Sanctions DENIED.

Plaintiff's Request for Sanctions DENIED.

7.

CASE #	CASE NAME	HEARING NAME
CVPS2406454	GUBIN VS MAJER	MOTION TO COMPEL PLAINTIFF DARRYL HAYES' FURTHER RESPONSE TO FORM INTERROGATORIES BY DENNIS N. WALSH TRUSTEE OF DENNIS N. WALSH REVOCABLE

Tentative Ruling:

Cross-Defendant/Cross-Complainant Dennis N. Walsh Trustee of Dennis N. Walsh Revocable Trust's Motion to Compel Further Response to Form Interrogatories GRANTED.

Plaintiff Darryl Hayes to provide code compliant, verified responses, without objection, within 20 days.

Cross-Defendant/Cross-Complainant's Request for Sanctions DENIED.

Plaintiff's Request for Sanctions DENIED.

8.

CASE #	CASE NAME	HEARING NAME
CVPS2406454	GUBIN VS MAJER	MOTION TO COMPEL PLAINTIFF DARRYL HAYES' FURTHER RESPONSE TO DEMAND FOR PRODUCTION OF DOCUMENTS BY DENNIS N. WALSH TRUSTEE OF DENNIS N. WALSH REVOCABLE

Tentative Ruling:

Cross-Defendant/Cross-Complainant Dennis N. Walsh Trustee of Dennis N. Walsh Revocable Trust's Motion to Compel Further Response to Demand for Production GRANTED.

Plaintiff Darryl Hayes to provide code compliant, verified responses and responsive documents, without objection, within 20 days.

Cross-Defendant/Cross-Complainant's Request for Sanctions DENIED.

Plaintiff's Request for Sanctions DENIED.

9.

CASE #	CASE NAME	HEARING NAME
CVPS2406454	GUBIN VS MAJER	MOTION TO COMPEL PLAINTIFF DARRYL HAYES' FURTHER RESPONSE TO SPECIAL INTERROGATORIES BY DENNIS N. WALSH TRUSTEE OF DENNIS N. WALSH REVOCABLE

Tentative Ruling:

Cross-Defendant/Cross-Complainant Dennis N. Walsh Trustee of Dennis N. Walsh Revocable Trust's Motion to Compel Further Response to Special Interrogatories GRANTED.

Plaintiff Darryl Hayes to provide code compliant, verified responses, without objection, within 20 days.

Cross-Defendant/Cross-Complainant's Request for Sanctions DENIED.

Plaintiff's Request for Sanctions DENIED.

10.

CASE #	CASE NAME	HEARING NAME
CVPS2406454	GUBIN VS MAJER	MOTION TO COMPEL PLAINTIFF RICHARD PHILLIPS' FURTHER RESPONSE TO DEMAND FOR PRODUCTION OF DOCUMENTS BY DENNIS N. WALSH TRUSTEE OF DENNIS N. WALSH REVOCABLE

Tentative Ruling:

Cross-Defendant/Cross-Complainant Dennis N. Walsh Trustee of Dennis N. Walsh Revocable Trust's Motion to Compel Further Response to Demand for Production GRANTED.

Plaintiff Richard Phillips to provide code compliant, verified responses and responsive documents, without objection, within 20 days.

Cross-Defendant/Cross-Complainant's Request for Sanctions DENIED.

Plaintiff's Request for Sanctions DENIED.

11.

CASE #	CASE NAME	HEARING NAME
CVPS2406454	GUBIN VS MAJER	MOTION TO COMPEL PLAINTIFF RICHARD PHILLIPS' FURTHER RESPONSE TO FORM INTERROGATORIES BY DENNIS N. WALSH TRUSTEE OF DENNIS N. WALSH REVOCABLE

Tentative Ruling:

Cross-Defendant/Cross-Complainant Dennis N. Walsh Trustee of Dennis N. Walsh Revocable Trust's Motion to Compel Further Response to Form Interrogatories GRANTED.

Plaintiff Richard Phillips to provide code compliant, verified responses, without objection, within 20 days.

Cross-Defendant/Cross-Complainant's Request for Sanctions DENIED.

Plaintiff's Request for Sanctions DENIED.

12.

CASE #	CASE NAME	HEARING NAME
CVPS2406454	GUBIN VS MAJER	MOTION TO COMPEL PLAINTIFF RICHARD PHILLIPS' FURTHER RESPONSE TO SPECIAL INTERROGATORIES BY DENNIS N. WALSH TRUSTEE OF DENNIS N. WALSH REVOCABLE

Tentative Ruling:

Cross-Defendant/Cross-Complainant Dennis N. Walsh Trustee of Dennis N. Walsh Revocable Trust's Motion to Compel Further Response to Special Interrogatories GRANTED.

Plaintiff Richard Phillips to provide code compliant, verified responses, without objection, within 20 days.

Cross-Defendant/Cross-Complainant's Request for Sanctions DENIED.

Plaintiff's Request for Sanctions DENIED.

13.

CASE #	CASE NAME	HEARING NAME
CVPS2406454	GUBIN VS MAJER	MOTION TO COMPEL PLAINTIFF SPENCER BARTLETT'S FURTHER RESPONSE TO FORM INTERROGATORIES BY DENNIS N. WALSH TRUSTEE OF DENNIS N. WALSH REVOCABLE

Tentative Ruling:

Cross-Defendant/Cross-Complainant Dennis N. Walsh Trustee of Dennis N. Walsh Revocable Trust's Motion to Compel Further Response to Form Interrogatories GRANTED.

Plaintiff Spencer Bartlett to provide code compliant, verified responses, without objection, within 20 days.

Cross-Defendant/Cross-Complainant's Request for Sanctions DENIED.

Plaintiff's Request for Sanctions DENIED.

14.

CASE #	CASE NAME	HEARING NAME
CVPS2406454	GUBIN VS MAJER	MOTION TO COMPEL PLAINTIFF SPENCER BARTLETT'S FURTHER RESPONSE TO DEMAND FOR PRODUCTION OF DOCUMENTS BY DENNIS N. WALSH TRUSTEE OF DENNIS N. WALSH REVOCABLE

Tentative Ruling:

Cross-Defendant/Cross-Complainant Dennis N. Walsh Trustee of Dennis N. Walsh Revocable Trust's Motion to Compel Further Response to Demand for Production GRANTED.

Plaintiff Spencer Bartlett to provide code compliant, verified responses and responsive documents, without objection, within 20 days.

Cross-Defendant/Cross-Complainant's Request for Sanctions DENIED.

Plaintiff's Request for Sanctions DENIED.

15.

CASE #	CASE NAME	HEARING NAME
CVPS2406454	GUBIN VS MAJER	MOTION TO COMPEL PLAINTIFF SPENCER BARTLETT'S FURTHER RESPONSE TO SPECIAL INTERROGATORIES BY DENNIS N. WALSH TRUSTEE OF DENNIS N. WALSH REVOCABLE

Tentative Ruling:

Cross-Defendant/Cross-Complainant Dennis N. Walsh Trustee of Dennis N. Walsh Revocable Trust's Motion to Compel Further Response to Special Interrogatories GRANTED.

Plaintiff Spencer Bartlett to provide code compliant, verified responses, without objection, within 20 days.

Cross-Defendant/Cross-Complainant's Request for Sanctions DENIED.

Plaintiff's Request for Sanctions DENIED.

16.

CASE #	CASE NAME	HEARING NAME
CVPS2406454	GUBIN VS MAJER	MOTION TO COMPEL PLAINTIFF SYDNEY GUBIN'S FURTHER RESPONSE TO FORM INTERROGATORIES BY DENNIS N. WALSH TRUSTEE OF DENNIS N. WALSH REVOCABLE

Tentative Ruling:

Cross-Defendant/Cross-Complainant Dennis N. Walsh Trustee of Dennis N. Walsh Revocable Trust's Motion to Compel Further Response to Form Interrogatories GRANTED.

Plaintiff Sydney Gubin to provide code compliant, verified responses, without objection, within 20 days.

Cross-Defendant/Cross-Complainant's Request for Sanctions DENIED.

Plaintiff's Request for Sanctions DENIED.

17.

CASE #	CASE NAME	HEARING NAME
CVPS2406454	GUBIN VS MAJER	MOTION TO COMPEL PLAINTIFF SYDNEY GUBIN'S FURTHER RESPONSE TO DEMAND FOR PRODUCTION OF DOCUMENTS BY DENNIS N. WALSH TRUSTEE OF DENNIS N. WALSH REVOCABLE

Tentative Ruling:

Cross-Defendant/Cross-Complainant Dennis N. Walsh Trustee of Dennis N. Walsh Revocable Trust's Motion to Compel Further Response to Demand for Production GRANTED.

Plaintiff Sydney Gubin to provide code compliant, verified responses and responsive documents, without objection, within 20 days.

Cross-Defendant/Cross-Complainant's Request for Sanctions DENIED.

Plaintiff's Request for Sanctions DENIED.

18.

CASE #	CASE NAME	HEARING NAME
CVPS2406454	GUBIN VS MAJER	MOTION TO COMPEL PLAINTIFF SYDNEY GUBIN'S FURTHER RESPONSE TO SPECIAL INTERROGATORIES BY DENNIS N. WALSH TRUSTEE OF DENNIS N. WALSH REVOCABLE

Tentative Ruling:

Cross-Defendant/Cross-Complainant Dennis N. Walsh Trustee of Dennis N. Walsh Revocable Trust's Motion to Compel Further Response to Special Interrogatories GRANTED.

Plaintiff Sydney Gubin to provide code compliant, verified responses, without objection, within 20 days.

Cross-Defendant/Cross-Complainant's Request for Sanctions DENIED.

Plaintiff's Request for Sanctions DENIED.

19.

CASE #	CASE NAME	HEARING NAME
CVPS2509048	CAMPOS VS PSTPS, INC. DBA DESERT HOT SPRINGS SPA HOTEL, A CALIFORNIA CORPORATION	HEARING RE: MOTION TO COMPEL

Tentative Ruling:

Interrogatories:

Upon a timely motion to compel further, the responding party has the burden to justify any objection or failure to fully respond to the interrogatory. (See *Fairmont Ins. Co. v. Superior Court (Stendell)* (2000) 22 Cal.4th 245, 255.) "Each answer in a response to interrogatories shall be as complete and straightforward as the information reasonably available to the permits." (Code Civ. Proc., § 2030.220(a).) "If an interrogatory cannot be answered completely, it shall be answered to the extent possible." (*Id.* at § 2030.220(b).) "If the responding party does not have personal knowledge sufficient to respond fully to an interrogatory, that party shall so state, but shall make a reasonable and good faith effort to obtain the information...." (*Id.* at § 2030.220(c).)

Special interrogatory no. 10 asks for Defendant to identify all lawsuits, PAGA claims, Labor Commissioner complaints, or other legal actions filed against Defendant for wage and hour violations. Defendant responded by identifying two lawsuits within the statute of limitations. In response, Defendant contends it does not maintain records of litigation as they are within the lawyers' possession. That is not sufficient. As stated above, Defendant must obtain a reasonable and good faith effort to obtain the information. It can contact it's attorneys for the information. Nor is there any privilege issue—Plaintiff is just seeking the identification of cases. As for limiting to the statute of limitations, that

is not a proper limitation to which Defendant does not justify. However, the request is overbroad. The court shall limit the request to 10 years and grant the motion.

Form interrogatory no. 209.2 asks whether any employee filed a civil action against Defendant, and to provide the contact information. Defendant identified only the cases, but not the other information. Defendant does not justify the response. The motion shall be granted.

Form interrogatory no. 216.1 asks for information supporting the affirmative defenses, along with witnesses and documents. Defendant states that they do not have any facts. That is a sufficient response.

Requests for Production:

In a motion to compel further responses as to document requests, the moving party must state specific facts demonstrating good cause justifying the discovery sought. (Code Civ. Proc., § 2031.310(b)(1).) To establish good cause, the moving party must demonstrate relevance and specific facts justifying discovery. (*Kirkland v. Superior Court (Guess? Inc.)* (2002) 95 Cal.App.4th 92, 98.) The burden to show good cause for production “is met simply by a fact-specific showing of relevance.” (*Tbg Ins. Servs. Corp. v. Superior Court* (2002) 96 Cal.App.4th 443, 448.)

For nos. 56-59, these require personnel files, payroll records, documents reflecting meal period/rest period premium pay, and all disciplinary records for cooks. Plaintiff fails to establish good cause. Employment records are protected by the right of privacy. (*Board of Trustees of Leland Stanford Jr. Univ. v. Superior Court* (1981) 119 Cal.App.3d 516, 528-530 (disapproved on other grounds in *Williams v. Superior Court* (2017) 3 Cal.5th 531, 557).) As stated by the California Supreme Court: “The party asserting a privacy right must establish a legally protected privacy interest, an objectively reasonable expectation of privacy in the given circumstances, and a threatened intrusion that is serious. [Citations.] The party seeking information may raise in response whatever legitimate and important countervailing interests disclosure serves, while the party seeking protection may identify feasible alternatives that serve the same interests or protective measures that would diminish the loss of privacy. A court must then balance these competing considerations.” (*Williams v. Superior Court* (2017) 3 Cal.5th 531, 552.) There is no compelling interest or need requirement based on *Williams*, in every case, but rather, the court is to consider the type of privacy, the seriousness of invasion, and the availability of alternatives and protective measures. (*Id.* at 556-559.) Discovery will not be ordered if the information sought is available from other sources or through less intrusive means. (*Allen v. Superior Court* (1984) 151 Cal.App.3d 447, 449 (applying to third party privacy rights).)

Here, Plaintiff asserts he needs comparative evidence—but he is not suing on a class action basis for wage and hour claims. To the extent Plaintiff is seeking “me too” evidence, the request is too broad. “Me too” evidence is permitted to prove certain things like motive. (See *Beyda v. City of Los Angeles* (1998) 65 Cal.App.4th 511, 521 (me too evidence to prove hostile work environment); *Johnson v. United Cerebral Palsy/Spastic Children’s Found. Of L.A. & Ventura Counties* (2009) 173 Cal.App.4th 740, 763-767 (me too evidence about pregnancy discrimination to prove motive where workers were in the same location and same supervisors); *Pantoja v. Anton* (2011) 198 Cal.App.4th 87, 114-118 (me too evidence to prove motive where same supervisor and same protected class involved); *Hatai v. Department of Transportation* (2013) 214 Cal.App.4th 1287, 1289-1292 (overruled on other grounds in *Williams v. Chino Valley Independent Fire District*

(2015) 61 Cal.4th 97) (me too evidence of the same protected class permitted).) However, it must relate to the same protected class and same decision maker. (*Pinter-Brown v. Regents of Univ. of Calif.* (2020) 48 Cal.App.5th 55, 97-98.) Here, Plaintiff has not narrowed the scope, and has not overcome the right of privacy.

Nos. 61-65 relate to all litigation related to wage and hour violations, audits, and corrective actions, from 2018 to the present. Defendant provided boilerplate objections, including work-product, attorney-client privilege documents, and privacy. It contends that it does not possess the documents—but does not state why it is unable to comply, e.g., never existed, lost/stolen, destroyed, or not in the possession, custody, or control of the responding party, in which case the response must state the name and address of anyone who has the document. (Code Civ. Proc., § 2031.230.) It still produced all documents that are non-privileged. But, Defendant failed to provide a privilege log. (Code Civ. Proc. 2031.240(c)(1).)

No. 73 requests insurance policies. Defendant objected, then stated it would produce copies, but then contends that there are no insurance policies. Defendant states in the most recent response, there are no insurance policies. There is no need for clarification.

Plaintiff's Motion to Compel Further Responses to Discovery GRANTED in PART.

Defendant to provide code-complaint, verified responses, without objection, to Special Interrogatory #10 within 15 days.

Defendant to provide code-complaint, verified responses, without objection, to Form Interrogatory #209.2 within 15 days.

Defendant to provide code-complaint, verified responses and responsive documents, without objection, to Request for Production #s 61-65, with a privilege log, within 15 days.

Motion to Compel as to Form Interrogatory #216.1, RFP #s 56-59 and 73 DENIED.

Defendant to submit updated verifications as to all supplemental responses, including those not included in this motion, if not previously verified in proper manner. Verifications to be submitted within 15 days.

Plaintiff's request for Sanctions DENIED.

Case Management Conference continued to 3.23.27. Updated Case Management Statements must be filed no later than 10 days before the Case Management Conference. All Case Management Statements shall be submitted on pleading paper with a brief summary of the status of the case and any specified issues that need to be addressed by the court. Do not use Judicial Counsel form CM-110

20.

CASE #	CASE NAME	HEARING NAME
CVSW2401239	COUNTY OF RIVERSIDE VS ALYCE J. LAZAR	HEARING RE: MOTION TO ENFORCE SETTLEMENT

Tentative Ruling: No tentative ruling. Hearing was continued to 11.04.26 pursuant to stipulation by parties.